

Rajasthan Agriculture University, Bikaner Act, 1987

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State of Rajasthan - Act

Rajasthan Agriculture University, Bikaner Act, 1987

RAJASTHAN

India

Rajasthan Agriculture University, Bikaner Act, 1987

Act 39 of 1987

Published on 1 January 1987

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Rajasthan Agriculture University, Bikaner Act, 1987

(Rajasthan Act

No. 39 of 1987

)

(Received the Assent of the Governor on the 8th day of November, 1987)

An Act to establish and incorporate a University for the development of Agriculture, including animal husbandry, and allied sciences in the State of Rajasthan.

Be it enacted by the Rajasthan State Legislature in the Thirty-eighth Year of the Republic of India as follows :-

Chapter - I Preliminary

1.

Short title and commencement.

(1)

This Act may be called the Rajasthan Agriculture University, Bikaner Act, 1987

(2)

It shall and shall be deemed to have come into force on such date as the State Government may, by notification in the Official Gazette, appoint.

2.

Definitions

- In this Act, unless the context otherwise requires, -

(a)

"Academic Council" means the Academic Council of the University as constituted under section 12 ;

(b)

"agriculture" means and includes the basic and allied sciences of soil and water management, crop production including production of all the garden crops, animal husbandry including veterinary science and dairy science, agricultural engineering and technology marketing, processing, co-operation. Land use and management and the economic and social uplift of the rural people;

(c)

"appointed day" means the date appointed under sub-section (2) of section 1 for the coming into force of this Act;

(d)

"Authority" means an Authority of the University as specified in section 10;

(e)

"Board" means the Board of Management of the University as constituted under section 11;

(f)

"College" means a constituent college of the University under the direct control and management of the Board or of the Principal Executive Officer of the University whether located at the headquarters of the University or elsewhere and includes each of the campuses of a college;

(g)

"employee" means any person appointed in or by the University, other than a teacher of the University;

(h)

"Extension Programme" means the educational activities concerned with the training of farmers and other groups serving agriculture in improved agricultural practices and the various phases of scientific technology related to agriculture and agriculture production and marketing;

(i)

"Faculty" means members of the teaching, research and extension staff of a college or division of the university having the rank of Assistant Professor and above;

(j)

"Government" means the Government of the State of Rajasthan;

(k)

"Hostel" means a place to residence for students of the University maintained or recognised by the University either as a part of or separate from a college;

(l)

"Officer" means an officer of the University as specified in section 18 or otherwise in the employment of the University designated as an officer in the Statutes;

(m)

"Ordinance" or "ordinance of the University" shall mean an ordinance made under section 30;

(n)

"Prescribed" means as prescribed by the Statutes of the University;

(o)

"Principal" means the Chief Executive Officer of a college which is or has been or is to be taken over as a constituent college of the University;

(p)

"Regulation" means the regulations and procedures made for the operation and functioning of the Authorities specified

in section 10 and includes the establishment or maintenance of the academic standards of the University and the provision for the conduct of the staff and students;

(q)

"State" means the State of Rajasthan;

(r)

"Statutes" means the Statutes of the University governing the matters of policy and procedure in the University as contained in the Schedule and as amended from time to time;

(s)

"Student" means a person enrolled in the University for taking a course of study for a degree, diploma, certificate of other academic distinction;

(t)

"Teacher" means a professor, reader or lecturer or any other person appointed or recognised by the University for imparting instructions to students or guiding research work or engaged for giving training or instructions in an extension programme and includes a person declared by the Statutes to be a teacher; and

(u)

"University" means the Rajasthan Agriculture University, Bikaner constituted under this Act.

Chapter - II Nature, Objects and Admission

3.

University to be a body corporate.

(1)

There shall be constituted in the State of Rajasthan a University by the name of Rajasthan Agricultural University, Bikaner.

(2)

The University shall consist of a Chancellor, a Vice-Chancellor, a Board of Management, an Academic Council and other authorized officers as specified in this Act or in the Statutes.

(3)

The University shall be a body corporate having perpetual succession and a common seal and may sue or be sued by its corporate name.

(4)

The University shall be competent to acquire, hold, manage, lease, sell or otherwise transfer any movable or immovable property including trust property which may be vested in or acquired by the University and may also borrow moneys from the Central Government, the State Government or any financial institution approved by the Government. The University may enter into a contract and do all other acts or things which are necessary for the purposes of this Act.

(5)

In all suits and proceedings by or against the University, the pleadings shall be signed and verified by the officer authorised by the Vice-Chancellor.

(6)

The headquarters of the University shall be at Bikaner. It shall have such colleges, campuses and affiliated institutions as may be determined by the State Government, by notification in the Official Gazette, on the appointed day and from time to time.

4.

Jurisdiction.

(1)

The territorial jurisdiction of the University shall for the purpose of teaching, research and extension in the field of agriculture, be the whole of the State of Rajasthan.

(2)

The University shall be competent to conduct a programme for the training of field extension workers and to run extension or training centers for agriculture.

(3)

All colleges, research stations, extension centers and other institutions functioning under the direct control or supervision of the University shall be the constituent units of the University under its complete management and control.

5.

Objects of the University.

(1)

The University shall extend and regulate its functions for the following objects, namely :-

(a)

for imparting education in agriculture and allied and different branches of study ;

(b)

for the advancement of learning and research work in agriculture and allied sciences ;

(c)

for undertaking extension education programmes specially for the rural people of the State of Rajasthan ; and

(d)

for such other work activity or project as the University may deem proper to undertake in order to achieve the objects for which it has been established.

6.

Admission.

(1)

The University shall, subject to the provisions of this Act and the Statutes, be open to all persons who fulfill the prescribed academic standards for admission and are not below the minimum standards prescribed in this behalf.

(2)

The University shall admit to any course of study such number of students that can be accommodated in the faculty or college or department of the University in accordance with the directions of the Academic Council.

(3)

The University shall reserve such seats in a course of study for the candidates belonging to scheduled castes and scheduled tribes and the candidates from other States of India as may be determined by the Government from time to time. The University may lay down the minimum standards specifically in respect of such candidates.

Chapter - III Powers and Functions of The University and The Chancellor

7.

Powers and functions of the University.

(1)

The University shall exercise the powers and perform the functions as under:-

(a)

to provide for instructions in agriculture and allied branches of learning;

(b)

to facilitate research in agriculture and allied branches of learning ;

(c)

to disseminate the findings of research and technical information through extension programmes;

(d)

to give degrees, diplomas, certificates and other academic distinctions including honorary degrees ;

(e)

to conduct courses of study and to hold examinations and tests;

(f)

to provide lectures, training and instructions to field workers, farmers and others who are not enrolled as regular students of the University;

(g)

to co-ordinate with other University, institutions, organisations and authorities in order to carry out the purposes of this Act and to achieve the objects specified in section 5;

(h)

to run and maintain colleges, institutions, laboratories, centres, libraries, research stations, museums, etc.;

(i)

to create posts in teaching research and extension programme and to appoint persons to such posts;

(j)

to create administrative and other posts and to appoint persons to such posts;

(k)
to institute and award fellowships, scholarships, prizes, etc. in accordance with the Statutes;

(l)
to build, maintain and manage buildings, offices residences, hostels, etc. for teachers, students, officers and staff;

(m)
to fix and collect fees and other charges as may be prescribed;

(n)
to enforce and maintain discipline among the teachers, students, officers and staff and to make necessary arrangements in order to promote their welfare and to improve their service conditions; and

(o)
to do all other acts and things which may be necessary to further the objects of the University or which are incidental or ancillary to achieve those objects.

8.
Chancellor.

(1)
The Governor of the State shall be the ex-officio Chancellor of the University.

(2)
The Chancellor may give any direction, take any action and do any thing as may be necessary under the provisions of this Act and the Statutes.

9.
Power to order inspection or enquiry.

(1)
The Chancellor shall have power to order an inspection, by such person as he may appoint, of the University and its buildings, research stations, laboratories, centers, libraries, museums, workshops and equipments and also of any institution, college or hostel administered, controlled or maintained by the University. An inspection or enquiry may also be made, as directed by the Chancellor, into the teaching or other work conducted by or under the auspices of the University or any matter connected with the administration or the finances of the University.

(2)
The Chancellor shall, before ordering an inspection or enquiry, give a notice to the University in this behalf. The University may appoint a person as its representative for being present and be heard at the inspection or enquiry.

(3)
The Chancellor may communicate to the University his views on the result of the inspection or enquiry and may, after obtaining the comments of the University, advise the University on the action to be taken within a period fixed by him.

(4)
The University shall, within the period so fixed, send a report to the Chancellor about the action taken or proposed to be taken with respect to the advice given by the Chancellor under sub-section (3).

(5)
The Chancellor may, where action is not taken by the University in accordance with the advice given by him under sub-section (3), issue directions, as he may deem fit, and the University shall be bound to comply with such directions.

(6)
Where the Chancellor is of the opinion that the affairs of the University are not being conducted in furtherance of its objects or in accordance with the provision of this Act so as to maintain the standards of teaching, examination, research or extension programme, he may call upon it to send comments or explanation in this behalf. In case the University fails to send, or sends unsatisfactory, comments or explanation, the Chancellor may issue such instructions as may appear to be necessary or desirable.

(7)
The University shall furnish such information relating to its administration as the Chancellor may require.

Chapter - IV Authorities of The University

10.
Authorities.

- The following shall be the authorities of the University, namely :-

- (a)
Board of Management;
- (b)
Academic Council;
- (c)
Board of Studies for each Faculty and Post-graduate studies; and
- (d)
Such other body as may be declared by the Statutes to be the Authority of the University.

11.
Board of Management.

(1)
The Vice-Chancellor shall, as soon as may be after the appointed day, order the constitution of the Board of Management in accordance with the provisions of the statutes.

(2)
The Board shall consist of such members, exercise such powers and perform such functions as may be prescribed.

12.
Academic Council.

(1)
There shall be an Academic Council of the University which shall be in charge of the academic affairs of the University and shall, subject to the provisions of this Act and the Statutes, supervise control and regulate the standards of instructions and examinations in the University and all matters connected with education training and research.

(2)
The Vice-Chancellor shall, as soon as may be after the appointed day, order the constitution of the Academic Council in accordance with the provisions of the Statutes.

(3)
The Academic Council shall consist of such members, exercise such powers and perform such functions as may be prescribed.

13.
Board of Studies.

(1)
There shall be a Board of Studies in each faculty and for Post-graduate studies.

(2)
A Board of studies shall be constituted in the manner, consist of such members, exercise such powers and perform such functions as may be prescribed.

14.
Other Authority.

- A body declared by the Statutes to be the Authority of the University of the University under clause (d) of section 10 shall be constituted in the manner, consist of such members, exercise such powers and perform such functions as may be prescribed.

15.
Dispute relating to appointment as member.

- If any dispute arises as to whether any person was duly nominated elected or appointed to any Authority, the matter may be referred to the Chancellor whose decision thereon shall be final.

16.
Temporary vacancy in the Authority.

- Any temporary vacancy, other than that of an ex-officio member, in any Authority shall, as soon as may be, be filled in the same manner in the case of a permanent vacancy. The person filling the temporary vacancy shall become a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

17.

Vacancy not to invalidate a proceeding

- No act or proceeding of any Authority shall be called in question or held to be invalid merely by reason of any vacancy of membership in such Authority.

Chapter - V Officers of The University

18.

Officers of the university.

- The following shall be the officers of the University namely :-

(a)

Vice-Chancellor;

(b)

Pro Vice-Chancellor;

(c)

Registrar;

(d)

Comptroller:

(e)

all Directors;

(f)

all Deans;

(g)

Librarian; and

(h)

any other person declared by the Statutes to be the officer of the University.

19.

Vice-Chancellor.

(1)

There shall be a Vice-Chancellor of the University who shall be a whole-time officer to be appointed by the Chancellor in such manner; for such a period and on such terms and conditions as may be prescribed.

(2)

Notwithstanding anything contained in sub-section (1), the first Vice-Chancellor of the University shall be appointed by the Chancellor after consultation with the Government for a period not exceeding three years on such terms and conditions as the Chancellor may determine.

(3)

The Vice-Chancellor shall be the principal academic and executive officer of the University and shall exercise overall supervision and control over the affairs of the University. He shall have all such powers as may be necessary for true observance of the provisions of this Act and the Statutes.

(4)

The Vice-Chancellor shall, where immediate action is called for, have power to make an order so as to exercise any power or perform any function which is exercised or performed by any Authority under this Act or the Statutes; Provided that any person, who is aggrieved by an order made by the Vice-Chancellor under this sub-section, may prefer an appeal before the Board within ninety days of the date on which the order is made and the Board may confirm, reverse or modify the said order.

(5)

The Vice-Chancellor may on being satisfied that any action taken or order made by any Authority is not in the interests of the University or beyond the powers of such Authority, require the Authority to review its action or order.

(6)

Where the Authority, on being required under sub-section (5) refuses or fails to review its action or order within sixty days of the date on which the Vice-Chancellor has so required, the matter may be referred to the Chancellor whose decision thereon shall be final.

20.

Other Officers.

- The officers, other than the Vice-Chancellor of the University referred to in section 18 shall be appointed in such manner for such period on such terms and conditions and shall exercise such powers and perform such functions as may be prescribed.

Chapter - VI Research and Extension

21.

Research Programme.

(1)

There shall be establish an agricultural research programme in the University for carrying on research throughout the State.

(2)

The research programme shall be directed primarily towards the problems of agriculture and allied sciences and conducted in the aid and for the development of agriculture and or the benefit of the rural population of the State.

(3)

The University shall act as the principal agency for agricultural research activities in the State.

(4)

The Government may allot and provide such funds, as it may deem proper, from time to time to the University for research programmes and other activities.

22.

Extension Programme.

(1)

The University shall initiate, conduct or supervise an agricultural extension programme in the State so as to make available to farmers and other such useful information which is based upon the findings of research.

(2)

The extension programme shall, for the purpose of increased agricultural production, be conducted through demonstration and training for the benefit of students, extension workers, cultivators and rural population.

(3)

All extension activities shall be aimed at increased production in agriculture and co-ordination with other functionaries and agencies of the Government.

(4)

The Government may, for the purpose of development of agriculture in the State through extension programmes, allot such funds and provide such personnel or facilities to the University as it may deem proper.

(5)

The Director of Extension shall be responsible for all the activities relating to the extension programme and shall regulate, control and supervise the programme under the directions of the Vice-Chancellor.

23.

Co-ordination.

(1)

The Vice-Chancellor shall have power to make such orders and do such acts as may be necessary for co-ordinating the teaching, research and extension activities of the University.

(2)

The Vice-Chancellor shall be responsible for creating conditions essential for maximum progress and development in technology related to agriculture and for inter relation between different curricula and courses being conducted different faculties so as to avoid any duplication of work.

(3)

The research and extension programmes shall be so conducted and developed that they serve the needs or the State and provide technical support and consultancy service to the Government.

Chapter - VII Appointments, Funds and Accounts

24.

Appointments.

(1)

A person may be appointed as a teacher or an employee of the University by a contract in writing which shall not contain

any condition contrary to any provision of this Act or the Statutes.

(2)

All appointments shall generally be governed by the Statutes and shall be made by an officer and in the manner as may be prescribed.

(3)

The original contract shall be kept on the record of the University and a copy thereof shall be given to the person employed.

25.

Provident Fund and pension fund.

(1)

The University shall for the benefit of its officers, teachers and employees, create provident fund or pension fund or formulate an insurance scheme in such manner and subject to such conditions as may be prescribed.

(2)

The provision of the provident Funds Act, 1925(Central Act 19 of 1925), shall apply to a fund or an insurance scheme as if it were a government fund or scheme and the University shall contribute to or invest in such fund or scheme.

(3)

Where a person in Government employment is transferred on deputation or otherwise to the University, the terms and conditions relating to the fund and the scheme referred to in sub-section (1) shall be such as may be agreed to between the Government and the University.

26.

University Funds.

(1)

There shall be a General Fund of the University to which all such incomes, fees and other receipts shall be credited under appropriate heads as may be prescribed.

(2)

The money received as contribution aid or grant from the Central Government or the State Government or any other money received from any one else, as may be directed by the Board, shall be credited to the Foundation Fund of the University.

(3)

The whole or part of the money deposited in the Foundation Fund of the University may be spent in such manner and for such purposes as may be prescribed or invested in such securities as are specified in section 20 of the Indian Trusts Act, 1882 (Central Act 2 of 1882)

(4)

Such statement, account, report or other particulars relating to the utilisation of any grant, aid or contribution given or made by the Central Government or the State Government shall be furnished to the said Government as may be required from time to time.

(5)

The General Fund, the Foundation Fund and other funds of the University shall be kept, managed and dealt with in accordance with the provisions of the Statutes as may be made from time to time.

27.

Accounts and Audit.

(1)

The accounts including the annual accounts of the University shall be prepared under the supervision and direction of the Comptroller.

(2)

All the moneys accruing to or received by the University from whatever source and all amounts disbursed or paid shall be duly and correctly entered in the accounts of the University.

(3)

The annual accounts including the balance sheet shall be audited by the auditor by the auditor as may be appointed by the State Government. The cost of audit shall be paid by the University. The copies of the annual accounts and the audit report shall be presented to the Board, the Chancellor and the State Government.

28.

Finance Committee.

(1)

There shall be a Finance Committee to be constituted by the Vice-Chancellor consisting of the Vice-Chancellor as its Chairman, a nominee of the State Government. The cost of audit shall be paid by the University. The copies of the annual accounts and the audit report shall be presented to the Board, the Chancellor and the State Government.

(2)

The Finance Committee shall :-

(a)

examine the annual accounts and the budget estimates and advise the Board thereon;

(b)

review the financial position of the University from time to time and advise the Board ; and

(c)

make recommendations to the Board on any matter of finance or any proposal involving excess expenditure.

Chapter-VIII Statutes, Ordinances and Regulations

29.

Statutes

(1)

The Statutes of the University shall contain such instructions, directions, procedures, details and terms and conditions as are required to be laid down order and in accordance with the provisions of this Act.

(2)

The Statutes as contained in the Schedule to this Act and as amended from time to time shall be binding on all the Authorities, officers, teachers, employees and students of the University and other persons connected with the affairs of the University.

(3)

The Board shall have power to amend, add or delete any Statute contained in the Schedule to this Act:

Provided that the Board shall not amend, add or delete any Statute affecting the constitution, status or power of any Authority without affording to such Authority a reasonable opportunity of making representation on the proposed changes.

(4)

Any amendment to the Statutes, whether by adding, deleting or in any other manner, shall not take effect unless the Chancellor has, after consultation with the Government, assented to it. The Chancellor may, after the said consultation and on being satisfied that assent be not given, withhold assent or return the proposal for amendment to the Board for re-consideration in the light of the observations, if any, made by him.

(5)

Notwithstanding anything contained in sub section(3) or sub-section(4), the Chancellor shall have power to amend, after consultation with the Government, whether by adding, deleting or in any other manner, the Statutes contained in the Schedule within a period of one year from the appointed day.

(6)

An amendment to the Statutes shall come into force on the date of its publication in the official Gazette.

30.

Ordinances of the University.

(1)

The Vice-Chancellor shall have power, at any time after the appointed day, to make, with the previous approval of the Government, the first Ordinances of the University.

(2)

Any amendment to the Ordinances (by adding, deleting or in any other manner) may be made, at any time after the first Ordinances are made under sub-section(1), by the Board in such manner as may be prescribed.

(3)

The Ordinances of the University may, subject to the provisions of this Act and the Statutes, be made for all or any of the following matters, namely:-

- (a)
the courses of study, admission or enrolment of students, fee, qualifications or conditions requisite for any degree, diploma, certificate or fellowship;
- (b)
the conduct of examinations including the appointments of examiners and their terms and conditions;
- (c)
management of colleges, institutions, research stations or extension centers or other agencies or bodies run by or admitted to the privileges of the University;
- (d)
the conditions for residing in any hostel or other place of residence run or maintained by the University, the levying of charges therefor and other related matters;
- (e)
the recognition and supervision of hostels not run or maintained by the University;
- (f)
the matters related to emoluments and conditions of services of officers, teachers and employees, their services records, tutorial instructions, allowances including travelling and daily allowances payable to teachers and employees; and
- (g)
any other matter required by the Statutes to be dealt by or under the Ordinances of the University.

31.

Regulations.

(1)

An authority shall have power to make regulations, in the manner as may be prescribed, for the conduct of its affairs and the affairs of any of its committees and for laying down the procedure to be followed at its meetings

(2)

The regulations shall not be contrary to the provisions of this Act, the Statutes of the Ordinances of the University.

Chapter-IX Miscellaneous

32.

Annual Report.

(1)

An annual report of the University shall be prepared by the Registrar under the direction of the Vice-Chancellor.

(2)

The annual report shall, among other things, set out the actions taken for the fulfilment of the objects of the University.

(3)

The annual report shall be circulated among the members of the Board one month before its annual meeting at which it is to be considered.

(4)

The Board shall, after considering the annual report, forward it with such comments, as may be deemed necessary, to the State Government. A copy of the said report shall be laid on the table of the House of the State Legislature.

33.

Co-ordination.

- The Vice-Chancellor shall take all such actions, as may be necessary, for as much co-ordination as possible among teaching research and extension activities of the University.

34.

Temporary Arrangements.

(1)

At any time after the appointed day and until such time as an Authority is duly constituted, the Vice Chancellor may, with the prior approval of the Chancellor, appoint an officer of the University to exercise the powers and perform the functions of such Authority.

(2)

The Vice Chancellor may make, subject to the approval of the Board, any temporary appointment in the vacancy of any

officer, teacher or employee until such time as regular appointment is made in accordance with the provisions of this Act and the Statutes.

(3)

Notwithstanding anything contained in any provision of this Act and the Statutes, the State Government may make an order for the appointment, on deputation or otherwise, of any government employee to any post of an officer or employee of the University for such period and on such terms and conditions as it may determine.

35.

Transfers of persons and properties from other Universities.

- The Chancellor, in consultation with the State Government, on the appointed day or at any time thereafter, make such orders as are deemed necessary, for the transfer of-

(a)

Any officer, teacher, employee or servant; or

(b)

any movable or immovable property or any rights or interests therein; or

(c)

any fund, grant, contribution, donation, aid or benefaction received, accrued or promised; or

(d)

any dues, liabilities or obligations incurred or lawfully subsisting in favour of or against the University; or

(e)

any will, deed or other document containing any bequest gift or trust; from any other University of which he is the Chancellor to the University constituted under this Act on such terms and conditions as may be determined in the order.

36.

Transfers of colleges and institutions.

(1)

Notwithstanding anything contained in any law for the time being in force, the colleges, institutions, hostels, offices, research stations, extension centers and any other body or agency, as may be specified by notification in the official Gazette on the appointed day or at any time. Thereafter, may be dis-affiliated or, as the case may be, transferred by the Government from any other University in the State and affiliated or transferred to or vested in the university constituted under this Act on such terms and conditions as may be determined by the Government.

(2)

The control and management of any college, institutions, station, centre, or any other body or agency affiliated or transferred under sub-section (1) shall stand vested in the University from the date of the publication of the notification under sub-section (1).

(3)

The students of the college or institution or the persons, engaged in research station or extension centre or in any other body so affiliated or transferred to the University shall be permitted to complete their course, research or programme and the University shall make arrangements therefor:

(4)

A person employed as a teacher or an employee in any college, institution, research station, extension centre or any other body or agency referred to in sub-section (1) shall, from the date of notification issued under the said sub-section, be deemed to have become the teacher or as the case may be, the employee of the University on the same terms and conditions.

37.

Residuary power of the Board.

(1)

The Board shall have power to deal with any matter pertaining to the University and not specifically assigned to the Board under this Act.

(2)

the Board may, subject to the approval by the Chancellor, admit any college, institution, research station or extension centre or any other body or organisation to the privileges of the University on such terms and conditions as the Board may deem necessary.

38.

Power to remove difficulties.

- Where any difficulty arises in giving effect to any provision of this Act, the State Government may, by notification in the official Gazette, make such order as appears to be necessary or expedient and as is not contrary to any provision of this Act: Provided that no such order shall be made after the expiry of three years from the appointed day.

39.

Statutes, Ordinances and Regulations to be published in the official Gazette and laid on the table of the House.

(1)

Every statute, ordinance of the University and regulation made from time to time, by way of amendment or otherwise, shall be published in the official Gazette.

(2)

Every Statute, ordinance and regulation made by amendment or otherwise at any time after the appointed day shall be laid, as soon as may be after it is made, before the House of the State Legislature, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions and if, before the expiry of the session immediately following the session or successive sessions aforesaid, the House agrees in making any modification in such statute, ordinance or regulation or the House agrees that the statute, ordinance or regulation should not be made, the Statute, Ordinance or, as the case may be, the regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice of the validity of anything previously done under that statute, ordinance or regulation.

40.

Repeal and Savings.

(1)

The Rajasthan Agriculture University, Bikaner Ordinance, 1987 (Ordinance No. 13 of 1987) is hereby repealed.

(2)

Notwithstanding such repeal, all things done, actions taken or orders made under the said Ordinance shall be deemed to have been done or taken or made under this Act.

Schedule

(See section 29)

Statutes Of The University

1. Vice-Chancellor. - (1) The Vice-Chancellor shall be a whole-time officer of the University and shall be appointed by the Chancellor on the advice of the Government upon the recommendation of a Selection Committee consisting of three members as under :-

(a)

one person nominated by the Board not connected with the University or any college thereof;

(b)

one educationist nominated by the Chancellor; and

(c)

one person nominated by the Indian Council of Agricultural Research.

(2)

One of the persons nominated under clause (1) shall be appointed by the Chancellor to be the Chairman of the Committee.

(3)

The term of office of the Vice-Chancellor shall be three years from the date on which he enters upon his office or until he attains the age of sixty five years, whichever is earlier:

Provided that the Chancellor may require the Vice-Chancellor whose term is expiring to continue in office for such period, not exceeding one year, as may be specified by the Chancellor Provided further that a person shall be eligible for appointment as the Vice-Chancellor for the second term.

(4)

Where a permanent vacancy in the office of the Vice-Chancellor occurs by reason of his death, resignation, removal or expiry of the term or on any other ground, it shall be filled by the Chancellor in the manner specified in clause (1) and for so long as it is not so filled, stop-gap arrangement, may be made by the Chancellor under and in accordance with clause

(5).

(5)

In the case of a temporary vacancy in the office of the Vice-Chancellor by reason of leave, suspension or otherwise or when a stop-gap arrangement is necessary under clause (4), the Chancellor may on the advice of the Government, make such arrangement for carrying on the functions of the Vice-Chancellor as he deems fit.

(6)

The Vice-Chancellor may relinquish his office by submitting, not less than sixty days in advance of the date on which he intends to be relieved, his resignation to the Chancellor.

(7)

The emoluments and other conditions of service of the Vice-Chancellor shall be as follows :-

(a)

salary Rs. 3000/- per month;

(b)

free furnished official residence;

(c)

all such allowances as are admissible to a professor of the University for other than teaching purposes; and

(d)

such terminal benefits and allowances as are sanctioned or granted from time to time by the Board with the approval of the Chancellor or under the ordinances of the University.

(8)

The official residence of the Vice-Chancellor shall be maintained from the funds of the University.

(9)

where a person appointed as the Vice-Chancellor was in employment before such appointment in any other college, institution or University, he may continue to contribute to the provident fund of which he was a member in such employment and the University shall contribute to the account of such person in that provident fund.

(10)

Where the Vice-Chancellor had been in his previous employment, a member of any insurance or pension scheme, the University shall make necessary contribution to such scheme.

(11)

The Vice-Chancellor shall be entitled to traveling and daily allowances at such rates as may be fixed by the Board.

(12)

The Vice-Chancellor shall be entitled to leave as under :-

(a)

leave on full pay at the rate of one day for every eleven days of active service; and

(b)

leave on half pay at the rate of twenty days for each completed year of service:

Provided that leave on half pay may be commuted as leave on full pay on production of medical certificate.

(13)

The Vice-Chancellor shall, in addition to the powers conferred on him and the functions assigned to him under the Act, also have the powers and perform the functions as under :-

(a)

to exercise control over the affairs of the University;

(b)

to give effect to the decisions taken by any Authority of the University;

(c)

to exercise all the powers to maintain discipline in the University;

(d)

to convene the meetings of the Board and the Academic Council and to present any matter for deliberations and consideration;

(e)

to ensure due observance of the provisions of this Act and the Statutes and to exercise all the powers necessary for the

purpose;

(f)

to take any action in an emergency when immediate action is called for and to report to such officer or the Authority about the action so taken who or which would have in the ordinary course dealt with the matter;

(g)

to maintain close co-ordination and integration in various branches, namely, teaching, research and extension;

(h)

to appoint teachers and employees or to authorise any officer to make appointment to any post or category of posts; and

(i)

to take disciplinary action against any teacher or employee or to authorise any officer to take such action.

2. Registrar. - (1) The Registrar of the University shall be appointed by the Board on the recommendation of the Selection Committee constituted for the purpose by the Board. Provided that the first Registrar shall be appointed by the Chancellor after consultation with the Government for a period not exceeding three years on such terms and condition as the Chancellor may determine.

(2)

The Registrar shall be responsible for the custody of the records and the common seal of the University. He shall be the ex-officio secretary to the Board and the Academic Council and shall maintain the minutes of the meetings.

(3)

The Registrar shall place before the Board and the Academic Council all such information as may be required for transaction business in the meetings.

(4)

The Registrar shall, in addition to as specified in clauses (2) and (3), shall exercise the powers and perform the functions as under :-

(a)

to make all necessary arrangements for the conduct of examination, training, workshop, seminar or any other programme of the University;

(b)

to perform all such functions as are assigned to him by the Vice-Chancellor, the Board or the Academic Council;

(c)

to submit to the Chancellor the copies of the agenda and the minutes of the meetings of the Board, Academic Council or any committee thereof;

(d)

to sign the powers of attorney, verify pleadings, appear in the court and authorise a person to appear for and on behalf of the University in a suit or other proceedings filed by or against the University; and

(e)

to take disciplinary action against such classes or categories of employees as may be authorised by the Vice-Chancellor.

(5)

The salary, allowances and other conditions of service of the Registrar shall be such as may be prescribed by the Ordinances of the University from time to time.

(6)

The Registrar shall retire on attaining the age of sixty years.

3. Comptroller. - (1) The Comptroller of the University shall be appointed by the Vice-Chancellor on the recommendation of the State Government.

(2)

The Comptroller shall work under the control of the Vice-Chancellor.

(3)

The salary, allowances and other conditions of service of the Comptroller shall be such as may be prescribed by the Ordinances of the University from time to time.

(4)

The Comptroller shall retire on attaining the age of sixty years.

(5)

The Comptroller shall exercise the powers and perform the functions as under:-

(a)

to advise the Board and the Vice-Chancellor regarding the financial policy;

(b)

to make arrangements for the preparation of the budget of the University and for its presentation to the Board;

(c)

to hold and manage the assets, investments and properties of the University;

(d)

to exercise supervision and control over the funds of the University;

(e)

to keep all moneys belonging to the University in such a bank or in such manner as may be specified by the Board;

(f)

to ensure that all expenditures are made within the limits fixed by the Authority competent to do so and for the purpose for which money is allotted or granted;

(g)

to prepare and maintain the accounts of the University in the manner as may be specified by the Board;

(h)

to supervise the collection of revenues of the University and to advise on the methods of such collection;

(i)

to keep watch on the cash and bank balances of the University;

(j)

to ensure that the registers of properties of the University are properly maintained and that stocks of all equipments, instruments and other materials in the offices, workshops, farms and sheds are duly checked and safely stored;

(k)

to call for any information or report necessary for verification from any office or centre or institution of the University; and

(l)

to perform such other functions as may be assigned to him by the Board or the Vice-Chancellor.

4. Directors. - (1) The directors in the University shall be appointed by the Vice-Chancellor with the approval of the Board.

(2)

A director shall be a whole time officer of the University and shall retire on attaining the age of sixty years.

(3)

The salary, allowances and other conditions of service of the directors shall be such as may be prescribed by the Ordinances of the University.

(4)

There shall be appointed, in addition to such directors as may be further deemed proper by the Board to be appointed, the following directors, namely :-

(a)

Director of Physical Plant;

(b)

Director of Research;

(c)

Director of Extension Education; and

(d)

Director of students welfare.

(5)

A director shall exercise such powers and perform such functions as may be specified in the ordinances of the University.

5. Librarian. - (1) There shall be appointed a librarian of the University by the Vice-Chancellor with the approval of the

Board.

(2)

The librarian shall deal with all the matters concerning University library including the purchase, cataloguing and maintenance of books, journals, periodicals, reports, etc.

(3)

The librarian shall be responsible for the operation of the University library and shall work under the control of the Vice-Chancellor.

(4)

The salary, allowances and other conditions of service of the librarian shall be such as may be specified in the ordinances of the University.

6. Deans of colleges, faculties and Post-Graduate Studies. - (1) There shall be a Dean for each college and faculty and for the post-Graduate Studies of the University.

(2)

A Dean shall be appointed by the Vice-Chancellor on the recommendation of the Academic Council subject to the approval of the Board.

(3)

A Dean shall receive such salary and allowances and his other conditions of service shall be such as may be specified in the ordinances of the University.

(4)

The Dean shall be the Chairman of the Board of Studies of his faculty or college and shall be responsible to the Vice-Chancellor for observance of the Statutes and regulations relating to the faculty or college and for conducting and organising teaching, training, research, etc.

(5)

The Dean shall co-ordinate the activities in various departments and sections of the college or the faculty and shall supervise the maintenance of records.

(6)

The Dean of Post-Graduate Studies shall co-ordinate post-graduate studies in all colleges, departments and sections of the University and shall exercise general supervision on post-graduate thesis and research programmes.

(7)

A Dean shall perform all such functions as are necessary for the proper functioning of the college or faculty or as are assigned to him by the Vice-Chancellor.

7. Board. - (1) The Board shall consist of the following members, namely :-

I - Vice-Chancellor ex-officio Chairman

II- Nominated members :-

(a)

two persons nominated by the Vice-Chancellor from amongst the Deans, Associate Deans and the Directors;

(b)

two professors of the University nominated by the Vice-Chancellor;

(c)

two persons nominated by the Vice-Chancellor from amongst the teachers other than professors, Deans, Associate Deans and Directors;

(d)

two eminent educationists nominated by the Chancellor;

(e)

one eminent scientist who has achieved distinction in agriculture, nominated by the State Government;

(f)

one progressive farmer nominated by the State Government;

(g)

one member of the State Legislative Assembly nominated by the Speaker;

(h)

one nominee of the Indian Council of Agricultural Research ;

III- Ex-officio members :-

- (a) Secretary to the Government, Department of Agricultural Production, Government of Rajasthan;
- (b) Secretary to the Government, Department of Animal Husbandry, Government of Rajasthan;
- (c) Secretary to the Government, Department of Education, Government of Rajasthan;
- (d) Director of Agriculture, Government of Rajasthan;
- (e) Registrar of the University Member-Secretary

(2) A nominated member of the Board shall hold office for a term of one year and shall be eligible for appointment for a second successive term. Such a person may be nominated again only after four years of the expiry of the previous term of one year or, as the case may be, two years.

(3) Six member shall form the quorum for a meeting of the Board.

(4) The members of the Board shall not be entitled to any salary but may be paid such travelling and daily allowances as may be fixed by the Board.

(5) The Chairman of the Board may exercise such powers of the Board as may be delegated to him by the Board.

(6) The minutes of the meetings of the Board shall be recorded and maintained by the member secretary of the Board.

(7) A secretary to the Government who is, for any reason, unable to attend any meeting of the Board as its member may depute any officer subordinate to him to attend such meeting.

(8) The Board shall exercise the powers and perform the functions as under :-

- (a) to manage and administer the finances, revenues, assets and properties of the University;
- (b) to control and supervise all the administrative affairs of the University;
- (c) to approve or sanction the annual budget of the University;
- (d) to acquire, dispose of, hold or control the properties and funds of the University;
- (e) to accept the transfer of any movable or immovable property on behalf of the University;
- (f) to administer the funds placed at the disposal of the University for certain specific purposes;
- (g) to create any posts of teachers and employees in the academic or administrative or any other department or office;
- (h) to determine the terms and conditions of service of teachers and employees of the University;
- (i) to specify the qualification and functions of teachers and employees;
- (j) to appoint committees, standing or temporary, for any purpose;
- (k) to permit or approve the borrowing of money and to make arrangement for its repayment;

- (l)
to invest money in stocks, funds or securities or in approved banks or other financial institutions or in the purchases of assets or properties in consultation with the Finance Committee;
- (m)
to regulate and approve the appointments of Visiting professors, Emeritus, Professors, Fellows, Scientists and experts and to determine the terms and conditions of such appointments;
- (n)
to enforce discipline in teachers and employees; and
- (o)
to regulate and determine all matters concerning the University in accordance with the Act and the Statutes,
- (9)
The Board shall meet at such intervals as it deems necessary: Provided that a meeting shall be held at least once in every three months.
8. Academic Council. - (1) The Academic Council of the University shall consist of the following members, namely :-
- (a)
Vice-Chancellor Ex-officio Chairman ;
- (b)
Dean, Post-graduate studies ;
- (c)
Deans of all faculties of the University;
- (d)
Directors of Research;
- (e)
Director of Extension;
- (f)
Director, Students Welfare;
- (g)
All Heads of departments not below the rank of Associate Professor;
- (h)
Two representatives of the Extension Programme not below the rank of Associate Professor nominated by the Vice-Chancellor by rotation:
- (i)
Two Associate Professors and four Assistant Professors having ten years experience in teaching degree or post-graduate classes including the experience in conduction or guiding research work or extension programme, to be elected from amongst themselves;
- (j)
Two persons nominated by the Vice-Chancellor from amongst persons possessing special attainments in the study of agriculture, not being teachers or employees of the University; and
- (k)
Registrar of the University Member-secretary
- (2)
The term of office of a nominated or elected member shall be two years.
- (3)
The Academic Council shall be incharge of the academic activities and affairs of all the colleges and institutions and shall exercise control over the courses, teaching, examinations and the award of degrees, diplomas and certificates.
- (4)
The Academic Council shall exercise the powers and perform the functions as under :-
- (a)
to supervise, control and regulate the academic policy of the University;
- (b)
to give direction in the matters of teaching, examination, evaluation, research and extension;

(c)

to take action for improvement of the academic standards;

(d)

to make regulations for academic functioning, discipline, admission, fellowship, fee and other ancillary matters; and

(e)

to do any other thing or act as may be prescribed from time to time

9. Board of Studies and Faculties. - (1) There shall be a Board of Studies in each faculty consisting of such members as may be specified by the Vice-Chancellor. The Dean of the faculty shall be the ex-officio Chairman of its Board of Studies.

(2)

There shall be as many faculties as may be determined by the Vice-Chancellor on the recommendation of the Academic Council. Each faculty shall comprise such departments with assignment of such subject as may be specified by the Vice-Chancellor.

(3)

There shall also be a Post-graduate faculty with Dean of Post-graduate studies in it.

(4)

Every department shall have a Head to be appointed by the Vice-Chancellor from amongst the professors or, in the absence of any professors, the Associate professors of that department or the officers of the Government.

(5)

The Board of studies, the Dean and the Head of the department shall exercise such powers and perform such functions as may be specified in the Ordinances of the University or the regulations.

10. College, Research Stations and Extension Centers. - There shall be as many constituent and affiliated college, institutions research stations, and extension centers of the University as may be specified in the notification issued under sub-section (1) of section 36 and as may be from time to time further determined by the Board with the prior approval of the Chancellor.

11. Extension Education. - (1) The extension education shall be conducted by the Director of Extension and shall be primarily educational in nature (as distinct from supplies, services and regulation) in the State.

(2)

There shall be imparted training including refresher training to the extension officers and other employees of various departments of the Government.

12. Selection Committees. - (1) Save as otherwise provided in the Act or the Statutes, there shall be a selection committee for appointments to each of the following categories of posts :-

(a)

Professors;

(b)

Readers;

(c)

Lecturers;

(d)

Directors;

(e)

Heads of institutions, if any; and

(f)

other academic staff.

(2)

A Selection committee shall consist of the following members, namely :-

(a)

Vice-Chancellor ex-officio Chairman;

(b)

one expert from outside the University to be nominated by the Vice-Chancellor;

(c)

a nominee of the Chancellor;

(d)

a nominee of the Board; and

(e)

a nominee of the Government.

(3)

The quorum for a meeting of a selection committee shall be three.

(4)

The procedure to be followed by a selection committee shall be such as may be specified in the Ordinances of the University.

(5)

The selection committee shall make recommendations to the Board which may, while accepting such recommendations, send the same to the Vice-Chancellor for making appointment or may, while not accepting them, submit the case together with reasons for not accepting the recommendations to the Chancellor whose decision thereon shall be final and the Vice-Chancellor shall take action accordingly.

13. Ex-Cadre Promotion. - The provision of the Rajasthan Universities Teachers and Officers (Selection for Appointment) Act, 1974 (Rajasthan Act

18 of 1974

) shall apply in the matter of ex-cadre promotions in the University.

14. Other Committees. - (1) An Authority may appoint as many standing or special committees as it may deem necessary and may also appoint any such person to a committee who is not a member of such Authority.

(2)

A committee may deal with a matter assigned to it and the action taken by the committee shall be final on confirmation by the Authority appointing it.

15. Conditions of Service of Teachers and Employees. - All teachers and employees shall, in the absence of any contract in writing to the contrary, be governed by the terms and conditions and the code of conduct as may be specified in the Ordinances of the University from time to time

16. Suspension or Removal of Teachers and Employees. - (1) Where suspension appears necessary on account of misconduct on the part of a teacher or an employee, the Appointing Authority shall have powers to place such teacher or the employee under suspension and to send a report to the Board immediately.

(2)

The appointing authority may, after an enquiry in which reasonable opportunity of showing cause and hearing has been given, make an order of removal from service of a teacher or an employee.

(3)

Save as provided in clause (2), a teacher or an employees shall not be removed from service without a good cause and without giving him three months notice in writing or three months salary in lieu of notice.

17. Resignation. - (1) In the case of permanent employment, a teacher or an employee may resign from service after giving three months notice or paying three months salary in lieu of notice to the appointing authority. In the case of employment not being permanent, one month's notice or one month's salary shall be sufficient.

(2)

The resignation shall take effect from the date on which it is accepted by the appointing authority.

18. Discipline. - (1) The discipline shall be maintained in the University by the Vice-Chancellor and he shall have power to take such disciplinary action against a students as appears necessary.

(2)

A student may be expelled from the University or rusticated for any period or punished with fine or debarred from taking any examination conducted by the University for one or more years as may be ordered by the Vice-Chancellor.

(3)

The result of examination may be withheld or cancelled in respect of any student as may be ordered by the Vice-Chancellor.

(4)

The heads of recognised institutions shall have power to take disciplinary action against any student of the institution.

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